

Present:
Mr. Justice S M Kuddus Zaman
and
Mr. Justice Md. Ali Reza
Criminal Miscellaneous Case No.41336 of 2022.

Md. Shafia Begum

.....Accused-petitioner

-Versus-

The State

... Opposite Party

Mr. Mohammad Shishir Manir, Advocate

.... For the accused-petitioner

Mr. Sujit Chatterjee, D.A.G

... For the State

Heard and Judgment on: 06.03.2024.

S M Kuddus Zaman, J:

On an application under section 491 of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why they should not be directed to bring the detenu who was detained illegally or improperly before this Hon,ble Court so that the detenu be set at liberty and/or pass such other or further order of orders as to this Court may seem fit and proper.

This application under section 491(1) (b) of the Code of Criminal Procedure for release of detenu of Md. Abu Taleb Sarker, son of Md. Mahir Uddin Sarker of village-Jamalpur, Post Office-Palashbari-5730, Police Station- Palashbari, District-Gaibandha alleging that he has been erroneously detained in Sessions Case No.22 of 2005 under section 302/34 of the Penal Code.

On conclusion of trial of Session Case No. 22 of 2005 on 18.11.2021 a comital warrant was issued

and the detenu was arrested pursuant to above warrant for the first time on 20.04.2022. The detenu was not an accused in above case. One Abu Taleb @ Gaura son of Osman, village-Chandipur, P.S. Palashbari, District-Gaibandah was an accused in above case who was convicted under section 302/34 of the Penal Code and sentenced to imprisonment for life. This petitioner was erroneously identified as above convict Abu Taleb @ Gaura and he has been suffering in above unlawful detention since 20.04.2022.

Mr. Mohamamd Shishir Manir, the learned Advocate for the petitioner submits that in the voter list, academic certificates of S.S.C, I.I.S.C. B.A. B.Ed, M.A.M.Ed and in his appointment letter as a teacher of Jamalpur High School the name of the petitioner has been mentioned as Md. Abu Taleb Sarker son of Mahir Uddin Sarker of village, Jamalpur. The detenu was an elected Vice-Chairman of Palashbari Upazilla, Gaibandha during the period from 2014 to 2019. He was not arrested in Sessions Case No.22 of 2005 arising out of G.R. No.1158 of 1999 at any stage of the proceedings. In above Session Case accused No.11 was Abu Taleb alias Ghawra son of Osman of village Chandipur who is completely a different person from the petitioner.

The learned Advocate further submits that the process issued upon absconding accused No.11 Abu Taleb alias Ghawra son of Osman of village Chandipur in G.R. No.1158 of 1999 was returned by the concerned police office stating that the father's name of the accused was not correct and no such persons lives in above address. But the prosecution did not take any step in view of above report. But after passing of the impugned judgment and order of conviction and

sentence against above person the detenu has been erroneously arrested and detained.

Mr. Sujit Chatterjee, the learned Deputy Attorney General submits that a person may have several names and there may be mistakes or errors in mentioning the father's name. The question is who was the real offender and whether detenu was in fact Abu Taleb alias Ghawra or not is a question of fact and for determination of above disputed fact an inquiry is needed. The Chief Judicial Magistrate of Gaibandha may be directed to told an enquiry and submit a report and this rule may be disposed of on consideration of above report.

On consideration of above facts and circumstances of the case and submission of the learned Advocates we directed the learned Session Judge of Gaibandha to conduct an inquiry to determine whether the deteune before us and accused No.11 of above Session Case are the same person or the detenue is a different person and erroneously arrested in connection with above case and submit a report within 03 (three) months from the date of receipt of this order.

Pursuant to above order of this court the learned Session Judge, Gaibandha asked three separate agencies, namely, Palashbari Upazilla Parishad of Gaibandha, Officer-in-Charge of Palashbari Police Station and the Head master of Jamalpur High School to enquire into the identity of the detenue and send separate reports and all above three agencies separately stated in their respective report that the name of the detenue was Md. Abu Taleb Sarker son of Mahir Uddin Sarker of village Chandipur, post office -Pothia Pukur, Upazilla-Palashbari and District-Gaibandha and at present he is living in Jamalpur Post Office-

Palashbari, Upazilla-Palashbari, District-Gaibandha. Accordingly the learned Senior Sessions Judge of Gaibandha prepared an inquiry report on 22.10.2023 forwarded the same to us.

It is crystal clear from the above report dated 22.10.2023 of the learned Senior Session Judge, Gaibandha that the petitioner before us is Md. Abu Taleb Sarker son of Md. Mahir Uddin Sarker and he is not Abu Taleb @ Ghawra son of Osman who was accused No.11 of the Session Case No.22 of 2005 under section 302/34 of the Penal Code.

Besides we have carefully examined all documents submitted by the learned Advocate for the petitioner which show that detenu Md. Abu Taleb Sarker, son of Mahir Uddin Sarker of village Jamalpur was an assistant teacher of Jamalpur High School and an elected Vice-Chairman of Palashbari Upazilla Parishad, Gaibandha during 2014-2019.

On consideration of above materials on record we find substance in this petition under section 491 of the Code of Criminal Procedure that the detenu who is the husband of the petitioner was unlawfully detained in the prison mistakenly identifying him as Abu Taleb @ Ghawra accused No.11 of the Session Case No.22 of 2005 and the rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

The detention of the husband of the petitioner namely Md. Abu Taleb Sarker in connection of Sessions Case No.22 of 2005 arising out of G. R. No.1158 of 1999 was unlawful.

Let the detenu Md. Abu Taleb Sarker son of Mahir Uddin Sarker is relieved of his bail bond.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.